

REGULATION 14

MANUFACTURERS, DISTRIBUTORS, OPERATORS OF INTER-CASINO LINKED SYSTEMS, GAMING DEVICES, NEW GAMES, INTER-CASINO LINKED SYSTEMS, ON-LINE SLOT METERING SYSTEMS, CASHLESS WAGERING SYSTEMS, MOBILE GAMING SYSTEMS, INTERACTIVE GAMING SYSTEMS AND ASSOCIATED EQUIPMENT; INDEPENDENT TESTING LABORATORIES

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14.010 Definitions. As used in this regulation, unless the context otherwise requires:

1. "Board" has the meaning ascribed to it in NRS 463.0137.
2. "Cashless wagering system" means the collective hardware, software, communications technology, and other associated equipment used to facilitate wagering on any game or gaming device including mobile gaming systems and interactive gaming systems with other than chips, tokens or legal tender of the United States. The term does not include any race and sports computerized bookmaking system that accepts pari-mutuel wagers, or any other race and sports book systems that do not accept wagering instruments, wagering credits or process electronic transfers. This type of associated equipment is further defined in NRS 463.014.
3. "Chair" means, except where otherwise provided, the Chair of the Nevada Gaming Control Board or the Chair's designee.
4. "Commission" has the meaning ascribed to it at NRS 463.0145.
5. "Control program" means any software, source language or executable code which affects the result of a wager by determining win or loss. The term includes, without limitation, software, source language or executable code associated with the:
 - (a) Random number generation process;
 - (b) Mapping of random numbers to game elements to determine game outcome;
 - (c) Evaluation of the randomly selected game elements to determine win or loss;
 - (d) Payment of winning wagers;
 - (e) Game recall;
 - (f) Game accounting including the reporting of meter and log information to on-line slot metering system;
 - (g) Monetary transactions conducted with associated equipment;
 - (h) Software verification and authentication functions which are specifically designed and intended for use in a gaming device;
 - (i) Monitoring and generation of game tilts or error conditions; and
 - (j) Game operating systems which are specifically designed and intended for use in a gaming device.↪ The term does not include software used for artistic attributes of a game including graphics, sound and animation providing entertainment unless such elements are material to game play because they are necessary for the player to understand the game or game outcome.
6. "Distribution" or "distribute" means the sale, offering for sale, lease, offering for lease, licensing or other offer of any gaming device, associated equipment, cashless wagering system, mobile gaming system or interactive gaming system for use or play in Nevada.
7. "Distributor" means a person who operates, carries on, conducts or maintains any form of distribution.
8. "Distributor of associated equipment" is any person that sells, offers to sell, leases, offers to lease, licenses, markets, offers, or otherwise offers associated equipment in Nevada for use by licensees.
9. "Game" and "gambling game" have the meaning ascribed to them in NRS 463.0152.
10. "Game of chance" means a game in which randomness determines all outcomes of the game as determined over a period of continuous play.
11. "Game of skill" means a game in which the skill of the player, rather than chance, is the dominant factor in affecting the outcome of the game as determined over a period of continuous play.
12. "Game outcome" is the final result of the wager.
13. "Game variation" means a change or alteration in a game or gambling game that affects the manner or mode of play of an approved game. This includes, without limitation, the addition or removal of wagering opportunities or a change in the theoretical hold percentage of the game.

14. "Gaming session" means the period of time commencing when a player initiates a game or series of games on a gaming device by committing a wager and ending at the time of a final game outcome for that game or series of games.

15. "Hybrid game" means a game in which a combination of the skill of the player and chance affects the outcome of the game as determined over a period of continuous play.

16. "Identifier" means any specific and verifiable fact concerning a player or group of players which is based upon objective criteria relating to the player or group of players, including, without limitation:

- (a) The frequency, value or extent of predefined commercial activity;
- (b) The subscription to or enrollment in particular services;
- (c) The use of a particular technology concurrent with the play of a gaming device;
- (d) The skill of the player;
- (e) The skill of the player relative to the skill of any other player participating in the same game;
- (f) The degree of skill required by the game; or
- (g) Any combination of (a) to (f), inclusive.

17. "Independent contractor" has the meaning ascribed to it in paragraph (b) of subsection 2 of NRS 463.01715.

18. "Independent testing laboratory" means a private laboratory that is registered by the Commission to inspect and certify games, gaming devices, associated equipment, cashless wagering systems, inter-casino linked systems, mobile gaming systems or interactive gaming systems, and any components thereof and modifications thereto, and to perform such other services as the Board and Commission may request.

19. "Inter-casino linked system" has the meaning ascribed to it in NRS 463.01643.

(a) The term includes, without limitation:

(1) A network of electronically interfaced similar games located at two or more licensed gaming establishments that are linked to facilitate participation in a common progressive prize system; and

(2) The collective hardware, software, communications technology and other associated equipment used in such system to link and monitor games or devices located at two or more licensed gaming establishments, including any associated equipment used to operate a multi-jurisdictional progressive prize system.

(b) Systems that solely record a patron's wagering activity among affiliated properties are not inter-casino linked systems.

(c) The term "multi-jurisdictional progressive prize system" means the collection of hardware, software, communications technology and other associated equipment used to link and monitor progressive slot machines or other games among licensed gaming establishments in this state participating in an inter-casino linked system and one or more lawfully operated gaming locations in other jurisdictions that participate in a similar system for the purpose of participation in a common progressive prize system.

20. "Interactive gaming system" is a gaming device and means the collective hardware, software, communications technology, and proprietary hardware and software specifically designed or modified for, and intended for use in, the conduct of interactive gaming. The core components of an interactive gaming system, including servers and databases running the games on the interactive gaming system and storing game and interactive gaming account information, must be located in the State of Nevada except as otherwise permitted by the Chair.

21. "Manufacture" has the meaning ascribed to it in NRS 463.01715.

22. "Manufacturer" has the meaning ascribed to it in NRS 463.0172.

23. "Manufacturer of associated equipment" means any person who manufactures, assembles, or produces any associated equipment, including inter-casino linked systems, for use in Nevada by licensees.

24. "Mobile gaming system" means a system that allows for the conduct of games through mobile communications devices operated solely within a licensed gaming establishment by the use of communications technology that allows a patron to bet or wager, and corresponding information related to the display of the game, gaming outcomes or other similar information. A mobile gaming system is a gaming device.

25. "Modification" means, except as otherwise provided, a change or alteration in a gaming device previously approved by the Commission for use or play in Nevada that affects the manner or mode of play of the device. The term includes a change to control programs and, except as provided in paragraphs (c) and (d) of this subsection, in the theoretical hold percentage. The term does not include:

- (a) Replacement of one component with another, pre-approved component;
- (b) The rebuilding of a previously approved device with pre-approved components;

(c) A change in the theoretical hold percentage of a mechanical or electro-mechanical device, provided that the device as changed meets the standards of subsection 1 of section 14.040;

(d) A change in the theoretical hold percentage of an electronic device which is the result of a top award jackpot or bonus jackpot payment which is paid directly by an attendant and which is not accounted for by the device; or

(e) A change to software used for artistic attributes of a game, including graphics, sound and animation providing entertainment unless such elements are material to game play because they are necessary for the player to understand the game or game outcome.

26. "New game" means a game, other than a gaming device, that has not previously been approved for play in Nevada, and that is materially different in function, design, or operation from any game previously approved for play in Nevada.

27. "On-line slot metering system" is associated equipment and means the collective hardware, software and other associated equipment used to monitor, accumulate, and record meter information from gaming devices within a licensed establishment.

28. "Operator of an inter-casino linked system" means, except as otherwise provided, any person or entity holding a license or approval to operate:

(a) An inter-casino linked system in Nevada;

(b) A slot machine route that operates an inter-casino linked system for slot machines only;

(c) A mobile gaming system interfaced across two or more licensed gaming establishments;

(d) A nonrestricted gaming operation that operates an inter-casino linked system of an affiliate; or

(e) An inter-casino linked system under the preceding paragraphs (a) to (c), inclusive, of this subsection which system also is linked to or otherwise incorporates a multi-jurisdictional progressive prize system.

29. "Private residence" means a noncommercial structure used by a natural person as a place of abode and which is not used for a commercial purpose.

30. "Proprietary hardware and software" means hardware or software specifically designed for use in a gaming device including a mobile gaming system and interactive gaming system.

31. "Randomness" is the observed unpredictability and absence of pattern in a set of elements or events that have definite probabilities of occurrence.

32. "Rules of play" means those features of a game necessary for a reasonable person to understand how a game is played including, without limitation, the following:

(a) Help screens;

(b) Award cards; and

(c) Pay-line information.

➤ The term does not include those inherent features of a game that a reasonable person should know or understand prior to initiating the game.

33. "Skill" means the knowledge, dexterity or any other ability or expertise of a natural person.

34. "Theme" means a concept, subject matter and methodology of design.

(Adopted: 7/89. Amended: 10/90; 8/93; 1/27/00; 5/00; 5/03; 3/06; 7/10; 7/11; 9/11; 12/11; 3/12; 11/13; 6/14; 9/15; 10/16; 12/18; 6/20; 4/22; 7/24; 2/26.)

14.015 Policy. Gaming devices and associated equipment that incorporate innovative, alternative and advanced technology are beneficial to and in the best interests of the State of Nevada and it is the policy of the Commission to encourage the development and deployment of such technologies by manufacturers, distributors and gaming establishments to the extent consistent with the declared policy of this state as set forth in NRS 463.0129 and section 1 of Chapter 108 of the 2015 Statutes of Nevada.

(Adopted: 9/15.)

14.020 License required; applications; investigative fees; registration of a manufacturer or distributor of associated equipment.

1. Except as provided for in subsections 2 to 7 of NRS 463.650, inclusive, a person may only act as a manufacturer or distributor if that person holds a license specifically permitting the person to act as such.

2. An application for a manufacturer's or distributor's license shall be made, processed, and determined in the same manner as an application for a nonrestricted gaming license, using such forms as the Chair may require or approve.

3. An application for a manufacturer's or distributor's license shall be subject to the application and investigative fees established pursuant to section 4.070 of these regulations.

4. Any manufacturer or distributor of associated equipment for use in this State, other than a licensee as defined under NRS 463.0171, and any person having significant control over the operations of such manufacturer or distributor of associated equipment, as determined by the Chair, that may include without limitation, controlling shareholders, officer, directors, or other principals, must register with the Board pursuant to NRS 463.665 if such associated equipment:

- (a) Is used directly in gaming;
- (b) Has the ability to add or subtract cash, cash equivalents or wagering credits to a game, gaming device or cashless wagering system;
- (c) Interfaces with and affects the operation of a game, gaming device, cashless wagering system or other associated equipment;
- (d) Is used directly or indirectly in the reporting of gross revenue;
- (e) Is otherwise determined by the Board to create a risk to the integrity of gaming and protection of the public if not inspected.

5. A person required to register under subsection 4 shall be subject to the provisions set forth in section 4.200 of these regulations.

(Adopted: 7/89. Amended: 5/00; 5/03; 12/11; 3/12; 11/15; 12/18; 4/22; 7/22; 2/26.)

14.0205 Operators of inter-casino linked systems.

1. Only a person licensed as a manufacturer; licensed to operate a nonrestricted gaming operation; or holding an active license to operate an inter-casino linked system may be approved to operate an inter-casino linked system.

2. A person holding an active license to operate an inter-casino linked system shall be considered approved to operate an inter-casino linked system.

3. A person licensed as a manufacturer or licensed to operate a nonrestricted gaming operation may submit a written request to the Chair for approval to operate an inter-casino linked system. Such request shall be made, processed, and determined using such forms as the Chair may require or approve and must be accompanied and supplemented by such documents and information as may be specified or required.

(a) The Chair may reject the request for approval for any cause the Chair deems reasonable. If the Chair rejects the request, the Chair shall send written notice of the decision to the person who made the request.

(b) A rejection of a request for approval by the Chair shall be considered an administrative approval decision and is subject to the procedures set forth in sections 4.185, 4.190, and 4.195 of these regulations.

4. A person seeking approval to operate an inter-casino linked system does not have a right to the granting of the request. Any approval as an operator of an inter-casino linked system is a revocable privilege, and no holder acquires any vested right therein or thereunder. Judicial review is not available for decisions of the Board or Commission regarding a request for approval as an operator of an inter-casino linked system.

5. An operator of an inter-casino linked system may only receive, either directly or indirectly, compensation for placing and operating an inter-casino linked system based on a percentage or share of the money or property played from the linked games if the operator of the inter-casino linked system is a licensed manufacturer, is a licensed operator of a slot machine route, or is approved to share in revenue pursuant to NRS 463.162 or NRS 463.167.

(Adopted: 4/22. Amended: 2/26.)

14.021 Independent contractors; registration. [Repealed: 7/28/11.]

14.0215 Determination of suitability.

1. A person is not subject to licensing pursuant to subsection 1 of NRS 463.650 in connection with activities performed as an independent contractor provided that person complies with the requirements of this regulation governing independent contractors. Any other person who designs, develops, programs, produces or composes a control program for use in a gaming device in Nevada must be licensed in accordance with NRS 463.650.

2. An independent contractor may be required by the Commission, upon recommendation of the Board, to file an application for a finding of suitability to be an independent contractor for a licensed manufacturer.

3. The Commission shall give written notice to the independent contractor of its decision to require the filing of an application for a finding of suitability. Unless otherwise stated by the Commission in its written notice, an independent contractor who has been ordered to file an application for a finding of suitability to be an independent contractor may continue to perform under a contract with a manufacturer unless and until the Commission finds the independent contractor unsuitable.

4. If the Commission finds an independent contractor to be unsuitable:

(a) All licensed manufacturers shall, upon written notification, immediately terminate any existing relationships, direct or indirect, with the unsuitable independent contractor;

(b) No new gaming device with a control program that contains software, source language, or executable code created in whole or in part by the unsuitable independent contractor shall be approved; and

(c) Any previously approved gaming device with a control program that contains software, source language, or executable code created in whole or in part by the unsuitable independent contractor is subject to revocation of its approval if the reasons for the finding of unsuitability also apply to that gaming device.

5. Failure of a licensed manufacturer to terminate any association or agreement with an independent contractor after receiving notice of the determination of unsuitability constitutes an unsuitable method of operation.

6. The Commission retains jurisdiction to determine the suitability of an independent contractor regardless of whether or not the independent contractor has any active agreements with licensed manufacturers or is otherwise no longer functioning as an independent contractor.

7. A failure on the part of an independent contractor to submit an application for a finding of suitability within 30 days after being required to do so by the Commission shall constitute grounds for a finding of unsuitability of the independent contractor.

8. An independent contractor, or employee thereof, is not considered a gaming employee under NRS 463.0157 in relation to any work conducted designing, programming, producing or composing a control program within the scope of an agreement entered into with a licensed manufacturer. An independent contractor or employee thereof, is in no way exempt from being classified as a gaming employee under NRS 463.0157 for such work performed outside the scope of an agreement with a licensed manufacturer or for other work performed related to gaming.

(Adopted: 4/22/10. Effective: 7/1/10. Amended: 7/11; 6/13; 12/18.)

14.023 Manufacturer's agreements with independent contractors. Any agreement between a licensed manufacturer and an independent contractor shall provide for termination without continuing obligation of the licensed manufacturer in the event the independent contractor:

1. Refuses to respond to information requests from the Board;
2. Fails to file an application for a finding of suitability as required by the Commission; or
3. Is found unsuitable by the Commission.

(Adopted: 4/22/10. Effective: 7/1/10.)

14.024 Manufacturer's responsibilities for independent contractors. Each licensed manufacturer must:

1. Complete a review of any software, source language or executable code designed, developed, produced or composed by an independent contractor for compliance with all applicable regulations and technical standards of the Commission and Board prior to submission to the Board; and

2. As to such submission, maintain a record of the general subject matter description of the software, source language or executable code that was designed, developed, produced or composed by an independent contractor, by independent contractor name.

➤ Unless the Chair approves or requires otherwise in writing, such records shall be maintained for a minimum of five years from the date of the relevant submission and must be made available to the Board upon request. Failure to keep and provide such records is an unsuitable method of operation.

(Adopted: 4/22/10. Effective: 7/1/10. Amended: 7/11; 12/18.)

14.025 Certain themes prohibited in association with gaming devices.

A gaming device or gaming device modification submitted for approval by a manufacturer or made available for play by a licensee must not use a theme that:

1. Is derived from or based on a product that is currently and primarily intended or marketed for use by persons under 21 years of age; or
 2. Depicts a subject or material that:
 - (a) Is obscene;
 - (b) Offensively portrays persons based on race, religion, national origin, gender, or sexual orientation;
- or
- (c) Is otherwise contrary to the public policy of this state as set forth in NRS 463.0129.

This section does not apply to any themes that were used in connection with gaming devices that were approved for play prior to January 27, 2000.

(Adopted: 1/27/00. Amended: 9/15; 12/18; 12/24; 2/26.)

14.030 Approval of gaming devices and the operation of new inter-casino linked systems; applications and procedures.

1. A manufacturer or distributor shall not distribute a gaming device in Nevada and a licensee shall not offer a gaming device for play unless it has received administrative approval from the Chair, an approval by the Commission, or is offered for play pursuant to a field test ordered by the Chair.

2. An operator of an inter-casino linked system shall not install and operate a new inter-casino linked system in Nevada and a licensee shall not offer any gaming device or game for play that is part of such a system unless operation of the inter-casino linked system and all gaming devices or games that are part of or connected to the inter-casino linked system have been approved by the Commission, Board, or Chair, as appropriate, or are offered for play pursuant to a field test ordered by the Chair.

3. Applications for approval of a new gaming device or to operate a new inter-casino linked system shall be made and processed in such manner and using such forms as the Chair may prescribe. Only a licensed manufacturer may apply for approval of a new gaming device. Only an operator of an inter-casino linked system may apply for approval to operate a new inter-casino linked system.

4. At the Chair's request an applicant for a manufacturer's license or inter-casino linked system operator's approval shall apply for a preliminary determination that a new gaming device or new inter-casino linked system meets the standards required by this regulation. Such an applicant may also seek a preliminary determination by requesting the Chair's approval to apply for such a determination.

(Adopted: 7/89. Amended: 11/20/97; 1/27/00; 5/00; 5/03; 3/06; 7/10; 3/12; 11/13; 12/18; 6/20; 4/22; 2/26.)

14.040 Minimum standards for gaming devices.

1. All gaming devices must:

(a) Theoretically pay out a mathematically demonstrable percentage of all amounts wagered, which must not be less than 75 percent for each wager available for play on the device.

(b) Determine game outcome solely by the application of:

- (1) Chance;
- (2) The skill of the player; or
- (3) A combination of the skill of the player and chance.

(c) Display in an accurate and non-misleading manner:

- (1) The rules of play;
- (2) The amount required to wager on the game or series of games in a gaming session;
- (3) The amount to be paid on winning wagers;
- (4) Any rake-off percentage or any fee charged to play the game or series of games in a gaming session;
- (5) Any monetary wagering limits for games representative of live gambling games;
- (6) The total amount wagered by the player;
- (7) The game outcome; and
- (8) Such additional information sufficient for the player to reasonably understand the game outcome.

(d) Satisfy the technical standards adopted pursuant to section 14.050.

2. Gaming devices connected to a common payoff schedule shall:

(a) All be of the same denomination and have equivalent odds of winning the common payoff schedule/common award based as applicable on either or both of the combined influence of the attributes of chance and skill; or

(b) If of different denominations, equalize the expected value of winning the payoff schedule/common award on the various denominations by setting the odds of winning the payoff schedule in proportion to the amount wagered based as applicable on either or both the combined influence of the attributes of chance and skill, or by requiring the same wager to win the payoff schedule/award regardless of the device's denomination. The method of equalizing the expected value of winning the common payoff schedule/common award shall be conspicuously displayed on each device connected to the common payoff schedule/common award. For the purposes of this requirement, equivalent is defined as within a five percent tolerance for expected value and no more than a one percent tolerance on return to player or payback.

3. All possible game outcomes must be available upon the initiation of each play of a game upon which a player commits a wager on a gaming device.

4. For gaming devices that are representative of live gambling games, the mathematical probability of a symbol or other element appearing in a game outcome must be equal to the mathematical probability of that symbol or element occurring in the live gambling game. If the mathematical probability of a symbol or other element is different from the live game, the difference must be disclosed to the player in the area of play or in posted game rules.

5. Gaming devices that offer games of skill or hybrid games must indicate prominently on the gaming device that the outcome of the game is affected by player skill.

6. Gaming devices must not alter any function of the device based on the actual hold percentage.

7. Gaming devices may use an identifier to determine which games are presented to or available for selection by a player.

(Adopted: 7/89. Amended: 9/89; 10/92; 7/10. Effective: 1/1/93. Amended: 12/11; 9/15; 10/16; 12/18; 4/22; 2/26.)

14.045 Minimum standards for inter-casino linked systems. All inter-casino linked systems submitted for approval shall:

1. In the case of an inter-casino linked system featuring a progressive payoff schedule that increases as the inter-casino linked system is played, have a minimum rate of progression for the primary jackpot meter of not less than .4 of one percent of amounts wagered. In the case of an inter-casino linked system featuring a progressive payoff schedule that increases over time, have a minimum rate of progression for the primary jackpot meter of not less than one hundred dollars per day. The provisions of this subsection do not prevent an operator of an inter-casino linked system from limiting a progressive payoff schedule as allowed by subsection 5 of section 5.112 of these regulations.

2. Have a method to secure data transmissions between the games and devices and the main computer of the operator of an inter-casino linked system, as approved by the Board.

3. Display the rules of play and the payoff schedule.

4. Meet the applicable minimum standards for internal control that have been adopted pursuant to section 6.090 of these regulations.

(Adopted: 5/00. Amended: 5/03; 7/10; 12/18; 2/26.)

14.050 Technical standards.

1. The Chair shall publish technical standards for approval of gaming devices, cashless wagering systems, and associated equipment.

2. The Chair shall:

(a) Publish notice of proposed technical standards or revisions by posting the proposed changes or revisions on the Board's website;

(b) Mail notice of the posting of the proposed technical standards or revisions on the Board's website and a copy of this section to every nonrestricted licensee, licensed manufacturer and every person who has filed a request with the Commission; and

(c) Provide a copy of the proposed technical standards or revisions to the Commission.

3. The Chair shall consider all written statements, arguments, or contentions submitted by interested parties within 30 days of service of the notice provided for in subsection 2.

4. Not later than 45 days after service of written notice that the Chair has proposed the technical standards or revisions, any nonrestricted licensee or licensed manufacturer may object to the technical standards or revisions by filing a written objection with the Commission.

5. The Commission shall consider any objections filed to the technical standards or revisions proposed by the Chair. If the Commission does not concur with any of the technical standards, the Chair shall revise the technical standards to reflect the order of the Commission.

6. The Chair shall send written notice of the effective date of the standards or revisions to all nonrestricted licensees, licensed manufacturers and every person who has filed a request with the Commission.

7. Nonrestricted licensees or licensed manufacturers may propose the adoption, revision, or deletion of technical standards by submitting a written request to the Chair who will consider the request at the Chair's discretion. If the Chair does not propose the technical standard, the nonrestricted licensee or licensed manufacturers may file a request with the Commission to adopt, revise, or delete a technical standard. The Commission may consider the request at its discretion.

8. The Chair may waive for good cause shown the requirements of a technical standard for a gaming device or associated equipment. The Chair has full and absolute authority to condition or limit a waiver granted under this subsection for any cause deemed reasonable.

(Adopted: 7/89. Amended 5/03; 7/10; 9/11; 5/12; 12/18; 4/22.)

14.060 Employment of individual to respond to inquiries from the Board.

1. Each manufacturer and operator shall employ or retain an individual who understands the design and function of each of its gaming devices, associated equipment, cashless wagering systems, or interactive gaming systems who shall respond within the time specified by the Chair to any inquiries from the Chair concerning the gaming device, associated equipment, cashless wagering system, or interactive gaming system or any modifications to the gaming device, associated equipment, cashless wagering system, or interactive gaming system. Each manufacturer or operator shall on or before December 31st of each year report in writing the name of the individual designated pursuant to this section and shall report in writing any change in the designation within 15 days of the change.

2. Each registered independent testing laboratory shall employ an individual who understands the inspection and certification methodology, procedures, and operation of the registered independent testing laboratory. Such person shall be available during regular Nevada business hours to respond to requests from the Chair. Each registered independent testing laboratory shall provide the Board with the name of the employee performing this function as part of their initial registration application materials, and shall report in writing any subsequent change in the employee designated to perform this function within 15 days of the change.

(Adopted: 7/89. Amended: 5/00; 5/03; 3/12; 4/22.)

14.070 Board evaluation of new gaming devices. The Chair may require transportation of not more than two working models of a new gaming device to the new game lab of the Board or some other location for review and inspection. The manufacturer seeking approval of the device must pay the cost of the inspection and investigation. The lab may dismantle the models and may destroy electronic components in order to fully evaluate the device. The Chair may require that the manufacturer provide specialized equipment or the services of an independent technical expert to evaluate the device.

(Adopted: 7/89.)

14.075 Board evaluation of inter-casino linked systems. The Chair may require transportation of not more than one working model of an inter-casino linked system to the Board's offices or some other location for review and inspection pursuant to section 14.260. The associated equipment manufacturer seeking approval of the system shall pay the cost of the inspection and investigation. The Board may dismantle the model and may destroy electronic components in order to fully evaluate the inter-casino linked system. The Chair may require that the operator of an inter-casino linked system provide specialized equipment or the services of an independent technical expert to evaluate the inter-casino linked system.

(Adopted: 5/00. Amended: 5/03; 12/18.)

14.080 Field test of new gaming devices.

1. The Chair, in accordance with section 14.015, may allow or require that one or more models of a new gaming device be tested at a licensed gaming establishment(s) for not more than 180 days under terms and conditions that the Chair may approve or require. Upon written request of the manufacturer or distributor, the Chair may, by written agreement, allow the test period to be continued an additional 90 days beyond the 180-day maximum field test period, for the purpose of allowing the application for approval of the new gaming device to be acted upon by the Board and Commission. The Chair shall report all field tests on the agenda of the next regularly scheduled meeting of the Board and Commission.

2. In the interests of expediting the introduction of innovative, alternative and advanced technology for gaming devices for use or play in Nevada, a manufacturer may request its new gaming device be considered for evaluation under New Innovation Beta as an alternative to the field testing process set forth under subsection 1.

(a) For purposes of this section only, the term "New Innovation Beta" means a process of evaluating a new gaming device utilizing a field testing period under conditions and limitations described in this subsection.

(b) The terms and conditions imposed under the New Innovation Beta will be set forth by the Chair, and shall include, without limitation, requirements that:

(1) A licensee notify patrons that the new gaming device is part of such a field test and is being exposed for play prior to finalization of the product in order to allow the evaluation of the gaming device at an earlier stage of the regulatory approval process and

(2) A field test will be for a period of not more than 270 days. Upon written request of the manufacturer or distributor, the Chair may, by written agreement, allow the test period to be continued an additional 90 days beyond the 270-day maximum New Innovation Beta field test period, for the purpose of allowing the application for approval of the new gaming device to be acted upon by the Board and Commission.

(c) The decision whether to permit a new gaming device to be evaluated utilizing New Innovation Beta is at the sole and absolute discretion of the Chair.

(d) When considering the request to evaluate a new gaming device utilizing New Innovation Beta, the Chair will consider factors including, without limitation, the ability of the gaming device to accurately determine, evaluate, and display the game outcome and the ability of the gaming device to accurately process the acceptance and award of all payments.

(e) The Chair may also consider the approval status of the gaming device in another state or foreign jurisdiction in which gaming is legal and regulated by a government agency with standards for gaming devices materially the same as those in Nevada, the determination of which is within the sole discretion of the Chair.

3. A manufacturer shall not modify a gaming device during the test period without the prior written approval of the Chair.

4. The Chair may order termination of the test period, if the Chair determines, in the Chair's sole and absolute discretion, that the manufacturer or licensed gaming establishment has not complied with the terms and conditions of the order allowing or requiring a test period or for any cause deemed reasonable.

(a) If the test period is terminated due to the licensed gaming establishment's failure to comply with the terms and conditions of the order allowing or requiring a test period, the Chair may order that the test be conducted at another licensed gaming establishment.

(b) A manufacturer may object to the termination of the test period by filing a written objection with the Commission. The filing of an objection shall not stay the order terminating the test. If the Commission fails to order resumption of the test within 60 days of the written objection, the objection will be deemed denied. If the Commission sustains the objection, the testing may be resumed under terms that may be approved or required by the Commission.

5. A licensee or manufacturer, or their agent shall not play a new gaming device during a test period. A licensee, or its agent, shall not play a gaming device during a test period.

6. If the Chair has made a determination that a new gaming device is not eligible for testing at a licensed gaming establishment, the Chair shall notify the manufacturer in writing. Not later than 10 days after receipt of such notification, the manufacturer may object to such a determination by filing written objection with the Commission. If the Commission fails to order a test period within 60 days of the written objection, the objection will be deemed denied. If the Commission sustains the objection, the new gaming device may be tested at a licensed gaming establishment under terms and conditions that may be approved or required by the Commission.

(Adopted: 7/89. Amended: 10/90; 5/00; 5/03; 3/06; 7/10; 10/16; 6/20; 4/22.)

14.090 Certification by manufacturer.

1. After completing its evaluation of a new gaming device, the Board's new games lab shall send a report of its evaluation to the manufacturer seeking approval of the device. The report must include an explanation of the manner in which the device operates. The report must not include a position as to whether the device should be approved. The manufacturer shall return the report within 15 business days and shall either:

- (a) Certify under penalty of perjury that to the best of its knowledge the explanation is correct; or
- (b) Make appropriate corrections, clarifications, or additions to the report and certify under penalty of perjury that to the best of its knowledge the explanation of the gaming device is correct as amended.

2. The Chair may order additional evaluation and a field test of the new gaming device of up to 60 days in addition to the test period provided for in section 14.080 if the Chair determines, based upon the manufacturer's certification, that such additional evaluation is necessary.

(Adopted: 7/89. Amended: 12/18.)

14.100 Final approval of new gaming devices.

1. After completing an evaluation of the new gaming device, the Chair may administratively approve or deny the application for approval of the new gaming device. Alternatively, the Chair may place the application for approval of the new gaming device on the Board's agenda for the entire Board to recommend to the Commission whether the application should be granted.

2. The Chair or Commission shall not grant an application for approval of a new gaming device unless the new gaming device complies with all applicable requirements and standards set forth in the Nevada Gaming Control Act, these regulations, the technical standards adopted pursuant to section 14.050, and any waiver or modification thereof granted by the Chair.

3. In addition to the requirement set forth in subsection 2, when determining whether a new gaming device will be given final approval, the Chair, or the Board and Commission shall consider whether approval of the new gaming device is consistent with the public policy of this state.

4. Approval of a gaming device does not constitute certification of the device's safety.

5. The Chair or Commission may, in their sole and absolute discretion, limit or condition any approval granted pursuant to this section.

6. A manufacturer or distributor who becomes aware that a gaming device approved pursuant to this section no longer complies with the applicable requirements or standards set forth in subsection 2 shall notify the Board of the noncompliance in writing within three business days.

(Adopted: 7/89. Amended: 5/00; 5/03; 11/13; 9/15; 12/18; 4/22; 2/26.)

14.105 Installation of a system based game or a system supported game. [Repealed: 9/23.]

(Adopted: 4/22/10. Effective: 7/1/10.)

14.110 Approval to modify gaming devices; applications and procedures.

1. Modifications to gaming devices may only be made by a licensed manufacturer who has received prior written approval from the Chair.

↳ In an emergency when a modification is necessary to prevent cheating or malfunction, the Chair may, in the Chair's sole and absolute discretion, orally approve a modification to be made by a manufacturer. Within 15 days of the emergency modification, the manufacturer making such modification shall submit a written request for approval of the modification that shall be made and processed as described in subsection 3 and include such other information as required by the Chair.

2. A manufacturer shall not modify a gaming device unless the device, as modified, meets the standards of section 14.040. The Chair may, in the Chair's sole and absolute discretion, waive all or some of the standards of section 14.040 if the modification is necessary to prevent cheating or malfunction. A waiver shall be effective when the manufacturer or operator receives a written notification from the Chair that all or some of the standards will be waived pursuant to this subsection. A waiver of all or some of the standards pursuant to this subsection is not an approval of the modification.

3. Applications for approval to modify a gaming device shall be made by a manufacturer and processed in such manner and using such forms as the Chair may prescribe.

(Adopted: 7/89. Amended: 11/20/97; 1/27/00; 5/00; 5/03; 7/10; 7/11; 3/12; 9/15; 6/20; 4/22; 2/26.)

14.120 Board evaluation of modifications.

1. The Chair may require transportation of not more than two working models of a modified gaming device, or any component thereof, to the Board's offices or some other location for review and inspection. The manufacturer seeking approval of the modification shall pay the cost of the inspection and investigation. The Board may dismantle the models and may destroy electronic components in order to fully evaluate the modified gaming device or inter-casino linked system, or component. The Chair may require that the manufacturer provide specialized equipment or the services of an independent technical expert to evaluate the modification.

2. The Chair has sole and absolute discretion to determine whether the requested modification of a gaming device renders the device sufficiently different so that the modified device should be treated as a new gaming device. If the Chair makes such a determination, the Chair shall notify the manufacturer in writing. The manufacturer may file an application for approval of a new gaming device.

3. The manufacturer shall submit materials relating to the results of the registered independent testing laboratory's inspection and certification process that are required under section 14.400.

(Adopted: 7/89. Amended: 5/00; 5/03; 3/12; 4/22.)

14.130 Field test of modified gaming devices.

1. The Chair may allow or require that one or more models of a modified gaming device be tested at a licensed gaming establishment for not more than 180 days under terms and conditions that the Chair may approve or require.

2. In the interests of expediting innovative, alternative and advanced technology in the modification of gaming devices and inter-casino linked systems approved for use or play in Nevada, a manufacturer may request a modification to its gaming device be considered for evaluation under New Innovation Beta as an alternative to the field testing process set forth under subsection 1.

(a) For purposes of this section only, the term "New Innovation Beta" means a process of evaluating a modification to a gaming device utilizing a field testing period under conditions and limitations described in this subsection.

(b) The terms and conditions imposed under New Innovation Beta will be set forth by the Chair, and shall include, without limitation, requirements that:

(1) A licensee notify patrons that the modification to an approved gaming device is part of such a field evaluation and is being exposed for play prior to finalization of the product in order to allow the evaluation of the modification to the gaming device at an earlier stage of the regulatory approval process and

(2) A field test will be for a period of not more than 270 days.

(c) The decision whether to permit a modification to an approved gaming device to be evaluated utilizing New Innovation Beta is at the sole and absolute discretion of the Chair.

(d) When considering the request to evaluate a modification to an approved gaming device utilizing New Innovation Beta, the Chair will consider factors including, without limitation, the ability of the gaming device to accurately determine, evaluate, and display the game outcome and the ability of the gaming device to accurately process the acceptance and award of all payments.

(e) The Chair may also consider the approval status of the modification to an approved gaming device in another state or foreign jurisdiction in which gaming is legal and regulated by a government agency with standards for modifications of gaming devices materially the same as those in Nevada, the determination of which is within the sole discretion of the Chair.

3. A manufacturer shall not further modify a gaming device during the test period without the prior written approval of the Chair.

4. The Chair may order termination of the test period if the Chair determines, in the Chair's sole and absolute discretion, that the manufacturer or licensed gaming establishment has not complied with the terms and conditions of the order allowing or requiring a test period or for any cause deemed reasonable.

5. A licensee or manufacturer, or their agent shall not play a modified gaming device during a test period.

6. If the Chair has made a determination that the modified gaming device is not eligible for testing at a licensed gaming establishment, the Chair shall notify the manufacturer in writing.

(Adopted: 7/89. Amended: 5/00; 5/03; 10/16; 6/20; 4/22.)

14.140 Final approval of modifications. The Chair shall notify the manufacturer in writing of the Chair's decision to approve or disapprove a modification.
(Adopted: 7/89. Amended: 5/00; 4/22.)

14.150 Conversions. [Repealed 6/14.]
(Adopted: 7/89.)

14.160 Duplication of program storage media. [Repealed: 9/23.]
(Adopted: 7/89.)

14.170 Marking, registration, and distribution of gaming devices.

1. Except as otherwise provided in subsection 2, a manufacturer or distributor shall not distribute a gaming device unless the gaming device has:

(a) A permanent serial number which must be affixed as required by the provisions of the Gaming Device Act of 1962, 15 U.S.C. 1173; and

(b) For devices distributed in this state:

(1) A permanent serial number which must be the same number as given the device pursuant to the provisions of the Gaming Device Act of 1962, 15 U.S.C. 1173, permanently stamped or engraved in lettering no smaller than 5 millimeters on the metal frame or other permanent component of the device and on a removable metal plate attached to the cabinet of the device.

2. The Chair may, in the Chair's sole and absolute discretion, waive the requirements of subsection 1 if:

(a) The device was manufactured prior to January 1, 1962, and the manufacturer or distributor permanently stamps or engraves in lettering no smaller than 5 millimeters a distributor's identification code assigned by the Chair and a serial number on the metal frame or other permanent component of each device covered by this subsection.

(b) The program storage media in 1(b) can be altered through a means that does not require removal from the device or if the physical size of such media does not permit it.

3. Each manufacturer or distributor shall keep records of the date of each distribution, the serial numbers of the devices, the Board approval number, or if the device has been modified since initial approval of the device, the modification approval number, and the name, addresses and telephone numbers of the person to whom the gaming devices have been distributed for use or play in Nevada and shall provide such records to the Chair immediately upon the Chair's request.

4. For all gaming devices distributed from a location within Nevada that are not for use or play in Nevada, a manufacturer or distributor shall provide any and all records documenting such distributions to the Chair upon request. Such records shall include the information required under the Gambling Device Act of 1962, 15 U.S.C. 1173, and shall be retained for a period of five years.

(Adopted: 7/89. Amended: 7/10; 6/13; 12/18; 9/23.)

14.180 Requirements to distribute gaming devices out of Nevada; recordkeeping requirements; inspection of facilities and devices.

1. A manufacturer or distributor shall:

(a) Prepare and maintain records of the information required by the Gaming Devices Act of 1962, 15 U.S.C. 1173. The records and documentation required by this paragraph shall be retained for a period of five years and must be produced for inspection upon request by the Board. The failure to prepare and maintain such records and documentation will be an unsuitable method of operation.

(b) Submit to the Board annually, a date determined by the Chair, an electronic record of the name and address of all current customers in a searchable format. The record required by this paragraph shall be received and retained by the Board as confidential pursuant to NRS 463.120.

2. A manufacturer or distributor shall not ship gaming devices to a destination where possession of a gaming device is unlawful.

3. An agent of the Board may inspect the premises of a manufacturer or distributor and all gaming devices located therein.

4. A manufacturer or distributor shall keep a record of all shipments made out of state of parts specifically designed for use in a gaming device. A manufacturer or distributor shall not ship parts

specifically designed for use in a gaming device to a destination where possession of a gaming device is unlawful.

5. The Chair may, in the Chair's discretion, waive one or more of the requirements of this section upon good cause shown.

6. As used in this section, "current customer" means a person to whom the applicable manufacturer or distributor has shipped or delivered a gaming device within the preceding six months pursuant to a contract, agreement or other arrangement with such manufacturer or distributor, or its affiliate, for the purchase, lease, license or other right to use such gaming device.

(Adopted: 7/89. Amended: 7/05; 6/13; 12/18; 1/20; 2/26.)

14.190 Approval for certain licensees to sell or dispose of gaming devices.

1. A licensee, other than a manufacturer or distributor, shall not dispose of a gaming device without the prior written approval of the Chair, unless the device is sold or delivered to an affiliate of the licensee or a licensed manufacturer or distributor, in which case approval is deemed granted.

2. A licensee, other than a manufacturer or distributor, shall not request approval to sell or deliver a gaming device to a person other than an affiliate of the licensee or a licensed manufacturer or distributor unless the devices have been marked pursuant to subsection 1 of section 14.170.

3. Applications for approval to sell or dispose of a gaming device under this section must be made, processed, and determined in such manner and using such forms as the Chair may prescribe.

(Adopted: 7/89. Amended: 6/13; 12/18; 2/26.)

14.200 Maintenance of gaming devices. A licensee shall not alter the operation of approved gaming devices and shall maintain the gaming devices in a suitable condition. Each licensee shall keep a written list of repairs made to gaming devices offered for play to the public that require a replacement of parts that affect the game outcome and shall make the list available for inspection by the Chair upon the Chair's request.

(Adopted: 7/89.)

14.210 Approval of promotional devices; applications and procedures.

1. As used in this section, "promotional device" means a contrivance that resembles a gaming device or slot machine that:

(a) Is playable without a wager being made; or

(b) Always pays out an amount in either cash or prizes that is equal to or greater than the wager made.

2. A manufacturer or distributor shall not distribute a promotional device for use in this state and a licensee shall not offer a promotional device for play to the public unless the promotional device has been approved by the Chair.

3. Applications for approval of promotional devices must be made, processed, and determined in such manner and using such forms as the Chair may prescribe. Each application must include, in addition to such other items or information as the Chair may require:

(a) A complete, comprehensive, and technically accurate description and explanation of the manner in which the device operates and complies with all applicable statutes, regulations and technical standards, signed under penalty of perjury;

(b) The name and permanent address of the purchaser if the purchaser is currently licensed by the Commission;

(c) The name, permanent address, social security number, and driver's license number of the purchaser if the purchaser is not currently licensed by the Commission. If the purchaser does not have a social security number or driver's license number, the purchaser's birth date may be substituted;

(d) The quantity and the serial numbers of the promotional devices being sold or distributed; and

(e) A statement by the purchaser under penalty of perjury that the device will be used only for lawful purposes.

(Adopted: 7/89. Amended: 7/10; 9/23.)

14.220 Revocation of approval of a gaming device or gaming device modification.

1. The Chair may revoke the approval of a gaming device or gaming device modification if the Chair determines that the gaming device or gaming device modification:

(a) Does not operate in the manner certified by the manufacturer pursuant to section 14.090;

- (b) Does not operate as approved by the Chair or Commission;
- (c) Does not accurately record or report transactions;
- (d) Does not comply with current regulatory or other legal requirements; or
- (e) Could negatively impact the public policy of this State concerning gaming.

2. The Chair shall provide notice of revocation of the approval of a gaming device or gaming device modification to the manufacturer of the gaming device immediately. The notice shall state the reason or reasons for the revocation. The notice shall provide the effective date of the revocation.

3. A manufacturer affected by a revocation of approval of a gaming device or gaming device modification by the Chair may submit the matter to the Board for review.

(a) A request for review of the Chair's revocation of approval must be submitted within 20 days after issuance of the notice described in subsection 2 and shall state specific reasons why the approval of the gaming device or gaming device modification should not be revoked.

(b) A majority of the Board may affirm or rescind the Chair's revocation of approval.

4. If the Board affirms a revocation of approval made by the Chair, the manufacturer who submitted the decision to the Board may submit the matter to the Commission within 20 days of the Board's final decision for review of the decision and may obtain a hearing and written decision and order pursuant to NRS 463.3125 to 463.3145, inclusive. Such hearing shall be considered a disciplinary hearing concerning the approval of the gaming device or gaming device modification. A final written decision and order of the Commission concerning the revocation decision is subject to judicial review pursuant to NRS 463.315 to 463.318, inclusive.

5. Any review of the Chair's decision to revoke the approval of a gaming device or gaming device modification shall not stay the revocation.

6. A revocation of the approval of a gaming device or gaming device modification only pertains to the approval of the gaming device or gaming device modification and shall not be considered a denial or revocation under the Gaming Control Act of the approval of a person.

7. The Chair may publish a list on the Board's website of the gaming devices and gaming device modifications for which the Chair has revoked approval.

(Adopted: 7/89. Amended: 5/00; 5/03; 4/22; 7/22; 2/26.)

14.230 Approval of a new game or game variation; applications and procedures.

1. A licensee shall not offer a new game for play unless the new game has received administrative approval from the Chair, an approval by the Commission, or is offered for play pursuant to a field trial authorized by the Chair. A licensee shall not offer a game variation for play unless the game variation has been approved in writing by the Chair.

2. Applications for approval of a new game or game variation shall be made and processed in such manner and using such forms as the Chair may prescribe. The applicant seeking approval of the new game or game variation shall pay the cost of the investigation.

3. The Chair may, in the Chair's sole and absolute discretion, waive the requirement to obtain Chair approval of a game variation related to Bingo. The Chair may condition, limit, or revoke a waiver granted under this subsection.

4. Any approval from the Board or Commission regarding a new game or game variation is an approval to expose such new game or game variation for play in Nevada. The Board and Commission do not resolve patent, copyright, trademark, or other intellectual property issues and do not intend that any infringement thereon should be committed by approval of a new game or game variation. Any approval of a new game or game variation is not intended to encourage or induce infringement of a valid patent, copyright, trademark, or other form of intellectual property.

(Adopted: 7/89. Amended: 7/10; 3/12; 12/18; 4/22; 2/26.)

14.235 Minimum standards for new games and game variations. New games and game variations must:

1. Theoretically pay out a mathematically demonstrable percentage of all amounts wagered, which must not be less than 75 percent for each wager available for play on the new game or game variation.

2. Determine game outcome solely by the application of:

- (a) Chance;
- (b) The skill of the player; or
- (c) A combination of the skill of the player and chance.

3. Display, or make reasonably available to each player, in an accurate and non-misleading manner:
 - (a) The rules of play;
 - (b) The amount required to wager on the game or series of games in a gaming session;
 - (c) The amount to be paid on winning wagers;
 - (d) Any rake-off percentage or any fee charged to play the game or series of games in a gaming session;
 - (e) Any monetary wagering limits;
 - (f) The game outcome; and
 - (g) Such additional information sufficient for the player to reasonably understand the game outcome.(Adopted: 2/26.)

14.240 Field trials of new games and game variations.

1. The Chair may allow or require that a new game or game variation to be tested at a licensed gaming establishment for not more than 180 days under terms and conditions that the Chair may approve or require.
 2. The Chair may order termination of the test period, if the Chair determines, in the Chair's sole and absolute discretion, that the developer of the new game or game variation, or the licensed gaming establishment has not complied with the terms and conditions of the order allowing or requiring a test period.
- (Adopted: 7/89. Amended: 7/10; 2/26.)

14.250 Final approval of new games or game variation.

1. After completing an evaluation of the new game or game variation, the Chair may administratively approve or deny the application for approval of the new game or game variation. Alternatively, the Chair may place the application for approval of the new game or game variation on the Board's agenda for the entire Board to recommend to the Commission whether the application should be granted.
 2. The Chair or Commission shall not grant an application for approval of a new game or game variation unless the new game complies with all applicable requirements and standards set forth in the Nevada Gaming Control Act, these regulations, and any waiver or modification thereof granted by the Chair.
 3. In addition to the requirement set forth in subsection 2, when determining whether a new game or game variation will be given final approval, the Chair, or the Board and Commission shall consider whether approval is consistent with the public policy of this state.
 4. The Chair or Commission may, in their sole and absolute discretion, limit or condition any approval granted pursuant to this section.
 5. A developer who becomes aware that a new game or game variation approved pursuant to this section no longer complies with the applicable requirements or standards set forth in subsection 2 shall notify the Board of the noncompliance in writing within three business days.
- (Adopted: 7/89. Amended: 2/26.)

14.255 Revocation of approval of a new game or game variation.

1. The Chair may revoke the approval of a new game or game variation if the Chair determines that the new game or game variation:
 - (a) Does not operate as approved by the Chair or Commission;
 - (b) Does not comply with current regulatory or other legal requirements; or
 - (c) Could negatively impact the public policy of this State concerning gaming.
2. The Chair shall provide notice of revocation of the approval of a new game or game variation to the developer of the new game or game variation immediately. The notice shall state the reason or reasons for the revocation. The notice shall provide the effective date of the revocation.
3. A developer affected by a revocation of approval of a new game or game variation by the Chair may submit the matter to the Board for review.
 - (a) A request for review of the Chair's revocation of approval must be submitted within 20 days after issuance of the notice described in subsection 2 and shall state specific reasons why the approval of the new game or game variation should not be revoked.
 - (b) A majority of the Board may affirm or rescind the Chair's revocation of approval.
4. If the Board affirms a revocation of approval made by the Chair, the developer who submitted the decision to the Board may submit the matter to the Commission within 20 days of the Board's final decision for review of the decision and may obtain a hearing and written decision and order pursuant to NRS 463.3125 to 463.3145, inclusive. Such hearing shall be considered a disciplinary hearing concerning the

approval of the new game or game variation. A final written decision and order of the Commission concerning the revocation decision is subject to judicial review pursuant to NRS 463.315 to 463.318, inclusive.

5. Any review of the Chair's decision to revoke the approval of a new game or game variation shall not stay the revocation.

6. A revocation of the approval of a new game or game variation only pertains to the approval of the new game or game variation and shall not be considered a denial or revocation under the Gaming Control Act of the approval of a person.

7. The Chair may publish a list on the Board's website of the new games or game variations for which the Chair has revoked approval.

(Adopted: 2/26.)

14.260 Approval of associated equipment; applications and procedures.

1. Unless otherwise waived pursuant to subsection 4, a manufacturer or distributor of associated equipment shall not distribute and a licensee shall not operate or offer associated equipment unless it has been approved by the Chair. Applications for approval of associated equipment shall be made and processed in such manner and using such forms as the Chair may prescribe.

2. The Chair shall not grant an application for approval of associated equipment unless the associated equipment complies with all applicable requirements and standards set forth in the Nevada Gaming Control Act, these regulations, the technical standards adopted pursuant to section 14.050, minimum internal controls adopted pursuant to section 6.090 of these regulations, internal control procedures adopted pursuant to section 6.100 of these regulations, and any waiver or modification thereof granted by the Chair.

3. Prior to approving an inter-casino linked system, the Chair shall consider whether:

(a) The terms of any agreement or written specifications permitted or required of an operator of an inter-casino system by any other state or tribal government and affecting a multi-jurisdictional progressive prize system:

(1) Comply with the provisions of these regulations; and

(2) Include procedures satisfactory to the Commission for:

(I) Ensuring compliance with the requirements of subsection 3 of section 14.040;

(II) Resolution of patron disputes under procedural and substantive requirements equal to or greater than the standards applied by the Board;

(III) Surveillance and security of gaming devices connected to such system;

(IV) Record-keeping and record-retention;

(V) Control of access to any internal mechanism of gaming devices connected to such system;

(VI) Prior administrative approval of the Chair for any adjustments to progressive meters;

(VII) Access by the Board to audit compliance with the requirements of this subparagraph; and

(VIII) Any special procedures necessary for a multi-jurisdictional progressive prize system with lawfully operated gaming locations participating outside the United States, including without limitation matters of currency conversion and the availability of English translations of all relevant and material documentation and information.

(b) For an inter-casino linked system of games of skill or hybrid games:

(1) The types of games that will be connected to such a system are compatible;

(2) The communications technology used to connect participating gaming devices is adequate for the operating environment for such a system; and

(3) The progressive payoff schedules used for such systems are accurately described for players and comply with subsection 3 of section 14.040. Notwithstanding the provisions of sections 5.110 and 5.112 of these regulations, such schedules may provide for partial prize awards and prize awards for games with different themes or based on the use of identifiers.

4. Chair approval of a multijurisdictional progressive prize system shall include approval of any agreement or written specifications permitted or required by any other state or tribal government and affecting such system. The Chair will complete any written acknowledgement necessary to document the Chair's approval of any such agreement or written specifications. The prior administrative approval of the Chair is required of any modification to such agreement or written specifications.

5. Prior to approving any associated equipment that facilitates the transfer of funds from a financial institution to a game or gaming device, the Chair shall consider whether the associated equipment supports responsible gambling features, including, without limitation:

(a) The ability to select responsible gambling options limiting the total amount of monetary transfers allowed within a specified period of time; and

(b) Display of the responsible gambling message set forth in paragraph (b) of subsection 18 of section 5.225 of these regulations or other message approved by the Chair.

6. The Chair may, in the Chair's sole and absolute discretion, limit or condition any approval granted pursuant to this section.

7. Upon written request from the manufacturer or distributor of associated equipment, or as the Chair otherwise deems reasonable, the Chair may, in the Chair's sole and absolute discretion, waive the approval requirement for associated equipment upon such terms and conditions that the Chair may approve or require or refer the associated equipment to the full Board and Commission for consideration of approval.

8. The Chair may, for good cause shown, waive a requirement of the technical standards that apply to associated equipment. The Chair has full and absolute authority to condition or limit any waiver granted under this subsection for any cause the Chair deems reasonable.

9. A manufacturer or distributor of associated equipment who becomes aware that associated equipment approved by the Chair no longer complies with the requirements and standards set forth in subsection 2 shall notify the Board in writing within three business days.

(Adopted: 7/89. Amended: 5/00; 5/03; 3/12; 2/14; 9/15; 12/18; 6/20; 4/22; 2/26.)

14.265 Electronic transfers of money using a debit instrument to a game or gaming device. A licensee shall not allow a patron to use a debit instrument for purposes of making electronic transfers of money from a financial institution directly or indirectly to a game or gaming device unless the transfer uses a cashless wagering system approved by the Chair for such transfer. This subsection only applies to electronic transfers of money at a game or gaming device.

(Adopted: 6/20.)

14.270 Board evaluation of associated equipment. The Chair may require transportation of not more than two working models of associated equipment to the Board's offices or some other location for review and inspection. The manufacturer seeking approval of the equipment must pay the cost of the inspection and investigation. The lab may dismantle the associated equipment and may destroy electronic components in order to fully evaluate the equipment. The Chair may require the manufacturer seeking approval of the equipment to provide specialized equipment or the services of an independent technical expert to evaluate the associated equipment.

(Adopted: 7/89. Amended: 5/00; 5/03; 7/10; 12/18.)

14.280 Field trial of associated equipment.

1. The Chair may allow or require that the associated equipment be tested at licensed gaming establishments for not more than 180 days under terms and conditions that the Chair may approve or require. The Chair may allow an additional test period upon written request of the manufacturer or distributor of associated equipment.

2. A manufacturer of associated equipment shall not modify associated equipment during the test period without the prior oral approval of the Chair.

3. The Chair may order termination of the test period, if the Chair determines, in the Chair's sole and absolute discretion, that the manufacturer or the distributor of the associated equipment or licensed gaming establishment has not complied with the terms and conditions of the order allowing or requiring a test period. If the test period is terminated due to the licensed gaming establishment's failure to comply with the terms and conditions of the order allowing or requiring a test period, the Chair may order that the test be conducted at another licensed gaming establishment.

(Adopted: 7/89. Amended: 5/00; 5/03.)

14.290 Installation of associated equipment. [Repealed 12/18.]

(Adopted: 7/89. Amended: 5/00; 5/03; 2/14.)

14.300 Modification of associated equipment.

1. As used in this section, "modification" means any change or alteration to previously approved associated equipment which affects the manner in which the associated equipment operates or the associated equipment's compliance with a gaming related statute, regulation, or other legal requirement.

2. Except as otherwise provided, the prior written approval of the Chair is required for a modification. A request for approval to modify previously approved associated equipment may be made by a manufacturer of associated equipment and shall be in writing, shall contain the information required by subsection 1 of section 14.260, and shall include such other information as required by the Chair.

3. In an emergency when a modification is necessary to prevent cheating or malfunction, the Chair may, in the Chair's sole and absolute discretion, summarily approve a modification to be made by a manufacturer of associated equipment. Within 15 days of the emergency modification, the manufacturer of associated equipment making such modification shall submit a written request for approval of the modification in accordance with subsection 2.

(Adopted: 7/89. Amended: 5/00; 5/03; 4/22.)

14.301 Revocation of approval of associated equipment.

1. The Chair may revoke the approval of associated equipment if the Chair determines that the associated equipment:

(a) Does not comply with current regulatory or other legal requirements or

(b) Contains hardware or software which could impact the public policy of this State concerning gaming.

2. The Chair shall provide notice of revocation of the approval of associated equipment to the manufacturer of the associated equipment immediately. The notice shall state the reason or reasons for the revocation. The notice shall provide the effective date of the revocation.

3. Chair revocation of the approval of associated equipment shall be considered an administrative approval decision, and therefore reviewable pursuant to the procedures set forth under sections 4.185, 4.190, and 4.195 of these regulations.

4. The Chair may publish a list on the Board's website which includes all associated equipment for which the Chair has revoked approval.

(Adopted: 4/22. Amended: 7/22.)

14.302 Manufacturer or distributor of associated equipment; registration of a manufacturer or distributor of associated equipment; application and procedures. [Repealed: 7/22.]

(Adopted: 11/15. Amended: 12/18.)

14.303 Consequences of a revocation of a registration of a manufacturer or distributor of associated equipment. If the Board seeks disciplinary action against a registered manufacturer or distributor of associated equipment and the disciplinary action results in the revocation of the registration of the manufacturer or distributor of associated equipment, the following consequences shall be imposed:

1. Upon the revocation of the registration of a manufacturer of associated equipment:

(a) No new associated equipment manufactured by the manufacturer shall be approved; and

(b) Any previously approved associated equipment manufactured by the manufacturer shall be subject to having its approval revoked if the reasons for the revocation of the registration also apply to the associated equipment.

2. Upon the revocation of the registration of a distributor of associated equipment, the distributor shall no longer distribute associated equipment for use or play in Nevada.

(Adopted: 12/18.)

14.305 Manufacturer or distributor of associated equipment; determination of suitability.

1. In addition to the requirements of this regulation requiring a manufacturer or distributor of associated equipment to be registered, the Board may, pursuant to subsection 4 of NRS 463.665, require a manufacturer or distributor of associated equipment who sells, transfers or offers the associated equipment for use or play in Nevada to file an application for a finding of suitability to be a manufacturer or distributor of associated equipment.

2. The Board shall give written notice of its decision to require the filing of an application for a finding of suitability under subsection 1.

3. All investigative costs and fees associated with applications for a finding of suitability are owed by the party required to file the application for a finding of suitability. Failure to remit such costs and fees within such periods set by the Board shall result in a lapse of the registration of the applicable manufacturer or distributor of associated equipment and will constitute an unsuitable method of operation. Where the party

required to file an application to manufacture or distribute associated equipment is not registered, failure to pay such investigative costs and fees is grounds for denial of any application associated with such manufacture or distribution of associated equipment.

4. Failure of any party described in subsection 1 to submit an application for a finding of suitability within 30 days of being required to do so by the Board shall constitute grounds for a finding of unsuitability of that party by the Commission.

5. If the Commission finds any manufacturer or distributor of associated equipment, as described in subsection 1 to be unsuitable under this section:

(a) The registration of such manufacturer or distributor is thereupon revoked as a matter of law;

(b) Any applications for registration as a manufacturer or distributor of associated equipment associated with a party which is found unsuitable are deemed denied as a matter of law;

(c) All gaming licensees, and all persons registered with the Board, shall, upon written notification from the Board or Commission, terminate any existing relationships, direct or indirect, with such unsuitable parties; and

(d) The same consequences set forth in section 14.303 for a revocation of a registration of a manufacturer or distributor of associated equipment shall be imposed.

6. Failure of a gaming licensee, or any person registered with the Board, to terminate any association or agreement, direct or indirect, with any party found unsuitable upon receiving written notice of the determination of unsuitability constitutes an unsuitable method of operation.

7. Failure of a registered manufacturer or distributor of associated equipment to terminate any association or agreement with any party found unsuitable upon receiving written notice of the determination of unsuitability shall constitute grounds for the revocation of the registration of the manufacturer or distributor of associated equipment.

8. The Commission retains jurisdiction to determine the suitability of any party described in subsection 1 regardless of whether or not that party has severed any relationship with a gaming licensee or registered manufacturer or distributor of associated equipment.

(Adopted: 11/15. Amended: 12/18; 7/22.)

14.310 Retention of records. Unless otherwise specified, all records required by this regulation must be maintained for 5 years.

(Adopted: 7/89; 3/12.)

14.320 Sale of antique gaming devices.

1. As used in this section "antique gaming device" has the meaning ascribed to it paragraph (a) of subsection 13 of NRS 463.650. For the purposes of this definition, the gaming device must be completely mechanical in operation and all of the following parts that make up the gaming device must have been made before the year set forth in paragraph (a) of subsection 13 of NRS 463.650:

(a) The cabinet and substantially all castings;

(b) The mechanical mechanism including the following essential parts, if applicable: payout slide(s); clock; reels; mechanism base; mechanism side frames; and

(c) Escalator assembly and coin drop assembly.

2. Upon approval of the Chair and compliance with the provisions of this section, an owner of an antique gaming device who is not a licensed distributor may sell such device through consignment with a licensed distributor. All such sales shall be made only to a resident of a jurisdiction wherein ownership of such device is legal.

3. A licensed distributor shall not distribute a consigned antique gaming device without the approval of the Chair. Applications for approval to sell a consigned antique gaming device must be made, processed, and determined in such manner and using such forms as the Chair may prescribe and may be denied by the Chair for any cause the Chair deems reasonable.

4. A licensed distributor shall submit an application to sell a consigned antique gaming device. Each application must include, in addition to such other items or information as the Chair may require:

(a) The full name, address, telephone number, social security number, birth date and driver's license number of the seller, the purchaser and the person to receive the antique gaming device, if different from the purchaser;

(b) The serial number of each device. In the event a serial number does not exist, the seller shall permanently engrave or stamp in lettering no smaller than 5 millimeters on the metal frame or other

permanent component of the device, the seller's initials, together with the last four digits of the seller's social security number, and a different number for each device sold sequentially increasing starting with the number one (1);

- (c) The manufacturer and model or description of each device;
- (d) The year the device was manufactured;
- (e) The denomination of each device, if applicable;
- (f) The final sales price of each device;
- (g) A written verification by the distributor that the device is an antique gaming device;
- (h) A statement by the purchaser under penalty of perjury that the antique gaming device will be used only for lawful purposes; and
- (i) A statement by the seller under penalty of perjury that the device meets the definition of antique gaming device as set forth within subsection 1.

5. If the Chair does not deny the application for approval to sell the antique gaming device within five business days of receipt of a complete application, the application will be deemed to be approved.

6. Consigned antique gaming devices may be sold only at a licensed distributor's location, or through a licensed distributor at an auction conducted by an auctioneer licensed in the State of Nevada at a Board approved location.

7. In addition to the requirements of subsection 4, if the antique gaming device is sold at auction, the following shall be provided to the Board by the licensed distributor at least 10 business days before the proposed auction:

- (a) The auctioneer's name, address and proof of licensing in the State of Nevada;
- (b) The date, time and location of the proposed auction; and
- (c) The information set forth within paragraphs (b) through (e) of subsection 4.

8. An agent of the Board may inspect all antique gaming devices sold pursuant to this section at any time prior to transfer of title thereto.

9. A person who is not the holder of a distributor's license who consigns to sell antique gaming devices pursuant to this section shall not:

- (a) Display or advertise for sale any gaming device anywhere in this state except as permitted by section 14.340; or
- (b) Solicit, accept, or execute orders for the purchase of any gaming device except as permitted by section 14.330.

(Adopted and Effective: 09/18/03. Amended: 12/18.)

14.330 Sale of gaming devices displayed or used in a private residence.

1. A person who owns gaming devices for use or display in the person's private residence may sell a total of two such devices during any 12-month period, without procuring a seller's or distributor's license therefor. Requests to sell gaming devices must be made, processed, and determined in such manner and using such forms as the Chair may prescribe and may be granted by the Chair upon good cause shown. If the Board does not object to the proposed transfer within five business days after receipt of the request, the proposed transfer may be effectuated.

2. Each request must include, in addition to such other items or information as the Chair may require:

- (a) The full name, state of residence, address, telephone number, social security number, and driver's license number of both the purchaser and the seller. If the purchaser or the seller does not have a social security number or driver's license number, the birth date of the purchaser or the seller may be substituted;
- (b) The number of devices to be sold;
- (c) The serial number of each device;
- (d) The model number of each device and year each device was manufactured, if known;
- (e) The denomination of each device;
- (f) The expected date and time of sale;
- (g) Unless the purchaser is currently licensed by the Commission, a statement by the purchaser under penalty of perjury that each device will be used only for lawful purposes.

3. A person may own or obtain gaming devices through a lease for the limited purpose of display or use in that person's private residence without procuring a state gaming license therefor as long as consideration is not directly or indirectly received for playing or owning the devices.

(Adopted: 10/90. Amended: 11/20/97; 5/21/98; 12/18.)

14.340 Display and marketing of gaming devices by unlicensed entities.

1. Except as provided in subsection 2, an unlicensed manufacturer or distributor may display and market their respective gaming devices at organized gaming shows and exhibitions within Nevada.
2. An unlicensed manufacturer or distributor shall not:
 - (a) Enter into contractual agreements for the sale of, nor accept orders for, their gaming devices for use or play in Nevada at such organized gaming shows and exhibitions; or
 - (b) Deliver or distribute gaming devices within Nevada without first procuring and maintaining all required federal, state, county and municipal licenses pursuant to subsection 1 of NRS 463.650, and thereafter, complying with the provisions of sections 14.170 and 14.180.
3. An unlicensed manufacturer or distributor must conspicuously display a sign at their trade show booth indicating that they are not licensed by the Commission as a manufacturer and/or distributor.
(Adopted: 11/20/97. Amended: 6/13.)

14.350 Independent testing laboratories; authority for Board to register and utilize; fees.

1. The Board is authorized to register and utilize independent testing laboratories for the inspection and certification of any game, gaming device, associated equipment, cashless wagering system, or interactive gaming system, or any component thereof or modification thereto, for use in Nevada.
2. The registration may be performed administratively by the Chair.
 - (a) The Chair may, at the Chair's sole and absolute discretion, approve the application if the Chair determines that the applicant meets the qualifications set forth under subsection 6 of section 14.360.
 - (b) The Chair may, at the Chair's sole and absolute discretion, condition or limit the registration of an independent testing laboratory in any manner and for any reason the Chair deems appropriate.
 - (c) The Chair may, at the Chair's sole and absolute discretion, deny the application if the Chair determines that the applicant has failed to meet the qualifications set forth under subsection 6 of section 14.360.
 - (d) An applicant for registration may have a decision of the Chair relating to its application reviewed pursuant to the administrative approval review and appeal process set forth under sections 4.185, 4.190, and 4.195 of these regulations.
3. The Chair, at the Chair's sole and absolute discretion, may forgo approving or denying an application for registration by referring the application to another Board member or to the full Board for consideration. If referred to the full Board, the Board may make a recommendation to the Commission to approve or deny the application for registration, conditioned or limited in any manner and for any reason it deems appropriate. The Commission, upon recommendation of the Board, may approve or deny the application for registration, conditioned or limited in any manner and for any reason it deems appropriate.
4. The manufacturer or operator shall be solely responsible for the payment of any fees imposed by the independent testing laboratory for its services. The fees to be charged shall be determined solely between the manufacturer or operator and the independent testing laboratory.
5. The manufacturer or operator shall pay any and all costs associated with any review or approval the Board performs of a game, gaming device, associated equipment, cashless wagering system, or interactive gaming system, or any component thereof or modification thereto, including any costs associated with the Board's review of the registered independent laboratory's inspection, certification or review as described in subsection 1 or in subsection 1 of section 14.360.
(Adopted: 3/12. Effective: 5/01/12. Amended: 12/18; 4/22.)

14.360 Independent testing laboratories; registration requirement; qualifications.

1. The following persons or entities must register with the Board under this section:
 - (a) Any independent testing laboratory that intends to inspect and certify games, gaming devices, associated equipment, cashless wagering systems, or interactive gaming systems, or any components thereof or modifications thereto, for use in Nevada; and
 - (b) Each person or entity that owns or has significant control over the operations of the independent testing laboratory seeking registration, including any intermediary entities.
2. In order to register, an independent testing laboratory must submit an application for registration to the Board as set forth in section 14.370.
3. The Chair, in the Chair's sole and absolute discretion, may require each testing facility at which an independent testing laboratory conducts inspection and certification procedures to register individually.

4. Each independent testing laboratory must be registered for each category of inspection and certification for which the laboratory seeks to provide results. The categories of inspection and certification include:

- (a) Games and game variations;
- (b) Gaming devices and gaming device modifications;
- (c) Gaming associated equipment and gaming associated equipment modifications;
- (d) Cashless wagering systems and cashless wagering system modifications;
- (e) Interactive gaming systems and interactive gaming system modifications; and
- (f) Any other category of inspection and certification that the Chair may deem appropriate.

5. The Board shall maintain a list of registered independent testing laboratories on its website along with the categories of inspection and certification each is registered to perform.

6. To qualify to be registered, the independent testing laboratory, and any other person, entity or testing facility that is required to register, must:

- (a) Demonstrate probity;
- (b) Be independent from any manufacturer, distributor, or operator of any game, gaming device, associated equipment, cashless wagering system, or interactive gaming system, or any component thereof or modification thereto, regardless of whether or not such person or entity is licensed, registered, or otherwise does business in Nevada;
- (c) Be accredited in accordance with ISO/IEC 17025 by an accreditation body that is a signatory to the International Laboratory Accreditation Cooperation Mutual Recognition Agreement, unless the independent testing laboratory is only seeking registration for the inspection and certification of games and game variations;
- (d) Demonstrate it is technically competent in testing the category of game, device, or system in which it is seeking registration; and
- (e) Demonstrate it is technically competent to test compliance with the applicable Nevada statutes, regulations, standards and policies.

7. To be considered independent from a manufacturer, distributor, or operator under paragraph (b) of subsection 6, the independent testing laboratory, including its employees, management, directors, owners, compliance committee members and gaming regulatory advisors, with the exception of the independent testing laboratory's external accountants and attorneys:

- (a) Must not have a financial or other interest, direct or otherwise, in a manufacturer, distributor, or operator of any game, gaming device, associated equipment, cashless wagering system, or interactive gaming system, or any component thereof or modification thereto, regardless of whether or not the person or entity is licensed, registered, or otherwise does business in Nevada;
- (b) Must not participate, consult, or otherwise be involved in the design, development, programming, or manufacture of any game, gaming device, associated equipment, cashless wagering system, or interactive gaming system, or any component thereof or modification thereto;
- (c) Must not have any other interest in or involvement with a manufacturer, distributor, or operator that could cause the independent testing laboratory to act in a manner that is not impartial; and
- (d) Such individuals shall not serve in any capacity with a manufacturer, distributor, or operator beyond the scope of the independent testing laboratory's engagement pursuant to these regulations.

➤ The restrictions in subsection 7 are not intended to limit an independent testing laboratory, or the above listed individuals, from providing consulting services to a manufacturer, distributor, or operator, provided that such services do not directly or indirectly indicate, suggest, or imply how to design, develop, program or manufacture a game, gaming device, associated equipment, cashless wagering system, or interactive gaming system, or any components thereof or modification thereto.

(Adopted: 3/12; Effective: 5/01/12; Amended: 4/22.)

14.370 Independent testing laboratories; registration; provisional registration; application and procedures; waiver.

1. Except as provided in subsection 2, an independent testing laboratory must be registered with the Board prior to providing inspection and certification results for any game, gaming device, associated equipment, cashless wagering system, or interactive gaming system, or any component thereof or modification thereto, for use in Nevada.

2. Upon written request, the Chair may, in the Chair's sole and absolute discretion and under such terms and limitations the Chair deems appropriate, issue a provisional registration to an independent testing

laboratory to allow it to perform the functions of a registered independent testing laboratory while its application for registration is pending. Such provisional registration may be revoked by the Chair at any time and for any reason, including but not limited to:

(a) If the investigation of the independent testing laboratory reveals that it does not meet the qualifications to be registered with the Board; or

(b) If the independent testing laboratory has violated the terms or limitations of its provisional registration.

3. Any independent testing laboratory that has had its provisional registration revoked by the Chair may have the decision reviewed pursuant to the administrative approval review and appeal process set forth under sections 4.190 and 4.195 of these regulations.

4. An application for registration as an independent testing laboratory shall be made, processed, and determined using such forms as the Chair may require or approve and must be supplemented by such documents and information as the Chair may request. The information submitted with the application shall include, but not be limited to, the following:

(a) Copies of all ISO/IEC 17025 certification and accreditation materials except if the independent testing laboratory is only seeking registration for the inspection and certification of games and game variations;

(b) All ISO required internal controls, policies and procedures, except if the independent laboratory is only seeking registration for the inspection and certification of games and game variations;

(c) Detailed description of the testing facilities;

(d) Detailed description of available testing staff and staff qualifications, including education, training, experience and skill levels;

(e) Detailed description of available testing equipment;

(f) Copies of documented policies, systems, programs, procedures and instructions to assure the quality of test results;

(g) Copies of all test scripts to be used for testing against the applicable Nevada statutes, regulations, standards, and policies.

(h) Information regarding the business organization and ownership of the applicant, including, but not limited to:

(1) Organization chart depicting the ownership structure of the applicant, including, but not limited to, any parent and affiliated organizations;

(2) Organization chart depicting the applicant's management structure;

(3) List of all key employees and other individuals who have significant involvement with the applicant's business operations;

(4) List of all officers, directors, partners, members, managers, trustees or direct or beneficial owners of the independent testing laboratory and of any person or entity that owns or has significant involvement with the activities of the independent testing laboratory, including any intermediary entities.

(i) A statement subscribed by the applicant for registration that:

(1) The information being provided to the Board is accurate and complete;

(2) The applicant for registration agrees to cooperate with all requests, inquiries, or investigations of the Board and Commission;

(3) The applicant acknowledges that the Board and Commission shall retain jurisdiction over the independent testing laboratory in any matter involving a game, gaming device, associated equipment, cashless wagering system, or interactive gaming system, or any component thereof or modification thereto, that it certifies for use in Nevada, even if its registration lapses, is voluntarily terminated, or is revoked;

(4) The applicant for registration acknowledges that the Commission may demand that the independent testing laboratory, or any of its key employees, managers, or owners, submit an application for finding of suitability as an independent testing laboratory, and that a failure to submit such an application within 30 days of the demand may constitute grounds for the revocation of the independent testing laboratory's registration; and

(5) The applicant agrees to indemnify and hold harmless the State of Nevada, the Commission, the Board, and each of their members, agents, and employees in their individual and representative capacities against any and all claims, suits and actions, brought against the persons named in this subsection by reason of any inspections or certifications performed by the applicant as a registered independent testing laboratory, and all other matters relating thereto, and against any and all expenses, damages, charges and

costs, including court costs and attorney fees, which may be sustained by the persons and entities named in this subsection as a result of said claims, suits and actions.

5. The Chair may require additional information from an independent testing laboratory to supplement the registration application;

6. During the registration evaluation process, the Board and its agents shall conduct any investigation it deems reasonable, including any visit, review or inspection of each independent testing laboratory seeking registration to evaluate its qualifications and capabilities. The applicant is to bear the cost of all such site visits and inspections held during the registration evaluation process.

7. The applicant is required to pay any and all costs associated with the investigation and inspection of the applicant during the registration evaluation period.

8. An independent testing laboratory is not considered registered with the Board until all of the above information, including any additional information requested by the Chair, has been provided and reviewed by the Board, all costs relating to site visits performed by the Board have been paid in full, all other costs associated with the investigation and inspection of the applicant have been paid in full, and the Chair has issued written notice of the completion of the registration process to the independent testing laboratory.

9. Upon written request, the Chair in the Chair's sole and absolute discretion, may waive any requirement in sections 3-7 above.

(Adopted: 3/12; Effective: 5/01/12; Amended: 4/22.)

14.380 Independent testing laboratories; notification and reporting requirements.

1. Registered independent testing laboratories must notify the Board of any change in ownership of the registered independent testing laboratory, any change in directors, executives, or key management or employees of the independent testing laboratory, and any other material changes to the information included in its application for registration or the information submitted in conjunction with or subsequent to its application within 30 days of such change.

2. By the 15th day of each January, a registered independent testing laboratory shall inform the Chair in writing of any changes to the information that was contained on the registered independent testing laboratory's application for registration or submitted in conjunction with or subsequent to its application. If no change to that information has occurred since the last reporting date, the registered independent testing laboratory must provide the Chair with a written affirmative statement indicating such.

3. Registered independent testing laboratories shall maintain copies of the results of any ISO/IEC 17025 audits or reviews and shall notify the Board in writing of the availability of the results within 15 days of when they become available to the registered independent testing laboratory. Such copies shall be provided to the Chair upon request.

(Adopted: 3/12; Effective: 5/01/12. Amended: 12/18.)

14.390 Independent testing laboratories; uniform protocols.

1. In the interest of preserving a competitive gaming industry, a registered independent testing laboratory shall not implement or maintain any procedure or policy or take any action that would inhibit or prevent a manufacturer, distributor or operator that has otherwise been deemed suitable for doing business in Nevada by the Board or Commission from submitting a game, gaming device, associated equipment, cashless wagering system, or interactive gaming system, or any component thereof or modification thereto, for inspection and certification for use in Nevada, or that would call into question or tend to erode the independence of the registered independent laboratory from any clients that utilize its services.

2. A registered independent testing laboratory shall maintain a version controlled system of testing documentation and methodologies it uses to provide certification against the Nevada regulatory structure, and such materials shall be made available to the Board upon request. Original testing documentation, methodologies, and any revisions to the testing documentation or methodologies must be approved by the Board prior to being used to certify against the Nevada regulatory structure.

3. All testing shall be performed using Nevada approved documentation and methodologies, and must be conducted specifically in accordance with the Nevada Gaming Control Act and the regulations adopted thereunder, and all technical standards, control standards, control procedures, policies, and industry notices implemented or issued by the Board.

4. All testing shall be performed by a person directly employed by the registered independent testing laboratory. The registered independent testing laboratory shall not assign, delegate, subcontract, or otherwise engage any person not directly employed by the registered independent testing laboratory for

any testing for which the laboratory has been registered in Nevada. The Chair, in the Chair's sole and absolute discretion, may permit a registered independent testing laboratory to utilize the services of a person other than a person directly employed by the independent testing laboratory to perform certain specific functions associated with the testing and certification procedures to be performed. Any such request must be made in writing to the Chair in advance of utilizing the services of the third-party. Any permission granted under this subsection must in writing and shall be limited as to time and scope in whatever degree the Chair deems appropriate under the circumstances and may be revoked by the Chair in writing at any time at the Chair's sole and absolute discretion.

5. A registered independent testing laboratory shall not utilize, rely on or otherwise refer to any testing, results or work product performed by another registered testing laboratory for any game, gaming device, associated equipment, cashless wagering system, or interactive gaming system, or any component thereof or modification thereto which has not previously been approved by the Board.

6. A registered independent testing laboratory shall implement and maintain a hiring and background check that ensures, at a minimum, that no person is hired in a position involving inspection or certification procedures relating to Nevada, or in a position overseeing or managing an employee in such a position, who has:

(a) Failed to disclose or misstated information or otherwise attempted to mislead the Board or Commission with respect to any information the person has provided to the Board or Commission;

(b) Knowingly failed to comply with the provisions of NRS chapters 463, 463B, 464 or 465, or the regulations of the Commission at a previous place of employment;

(c) Committed, attempted or conspired to commit any crime of moral turpitude, embezzlement or larceny or any violation of any law pertaining to gaming, or any crime which is inimical to the declared policy of this State concerning gaming;

(d) Committed, attempted or conspired to commit a crime which is a felony or gross misdemeanor in this State or an offense in another state or jurisdiction which would be a felony or gross misdemeanor if committed in this State and which relates to the applicant's suitability or qualifications to work for the registered independent testing laboratory;

(e) Been identified in the published reports of any federal or state legislative or executive body as being a member or associate of organized crime, or as being of notorious and unsavory reputation;

(f) Been placed and remains in the constructive custody of any federal, state or municipal law enforcement authority; or

(g) Had any gaming license, registration or other like credential revoked or committed any act which is a ground for the revocation of a gaming license, registration or other professional credential held by the person or would have been a ground for the revocation of a gaming license, registration or other professional credential had the person held such license, registration, or credential.

➤ All procedures conducted pursuant to this subsection and the results of those procedures shall be documented by the registered independent laboratory. Such documentation shall be made available to the Chair upon request and shall be maintained at all times while a person is employed by the registered independent testing laboratory and for a minimum of five years after a person's employment ends.

7. A registered independent testing laboratory shall implement and maintain a system of peer review to monitor the quality of the inspection and certification procedures performed by its employees.

8. A registered independent testing laboratory shall consult with the Board prior to testing, evaluating, analyzing, certifying, verifying, or rendering opinions for or on behalf of the Board relating to any new technology or concept.

9. A registered independent testing laboratory shall consult with a representative of the Board's technology division on any questionable interpretations of the Nevada regulatory structure as it relates to the inspection and certification of any game, gaming device, associated equipment, cashless wagering system, or interactive gaming system, or any component thereof or modification thereto.

10. A registered independent testing laboratory shall handle all information and data prepared or obtained as part of the Nevada certification process as confidential.

11. A registered independent testing laboratory shall implement and maintain security and access control systems designed to secure and protect the confidentiality of all equipment, software, and other information entrusted to it as part of the Nevada inspection and certification process.

12. A registered independent testing laboratory is required to maintain all test equipment in accordance with the manufacturer's specifications and recommendations, and shall provide the Board with evidence of such upon demand.

13. A registered independent testing laboratory shall retain all submission and testing related documentation. Such records may be maintained in electronic form. The obligation to maintain such records continues even if the independent testing laboratory ceases to be registered with the Board, or otherwise ceases its business operation. The independent testing laboratory may turn all such records over to the Board in electronic form as an alternative to having to maintain such records after its deregistration or after its business operation ceases.

14. An onsite evaluation and review of each registered independent testing laboratory shall be conducted by the Board periodically to evaluate certification results and to verify continued compliance with all registration requirements and protocols.

15. The Board shall, at all times, have immediate and unfettered access to the registered independent laboratory's place(s) of business.

16. The Board may establish a system to evaluate the continued quality of the inspection and certification performed by a registered independent testing laboratory.

17. A registered independent testing laboratory shall immediately notify the Board of any changes that may affect its ability to provide testing services.

18. A registered independent testing laboratory shall notify the Board immediately of any material issues concerning any game, gaming device, associated equipment, cashless wagering system, or interactive gaming system, or any component thereof or modification thereto, that it inspected or certified for use in Nevada, which it becomes aware of subsequent to it having issued its inspection and certification report relating thereto.

19. A registered independent testing laboratory shall notify the Board immediately of any attempts by a manufacturer, distributor, or operator that has attempted to improperly influence the registered independent testing laboratory, or any of its employees, managers, or owners, in or in connection with any inspection or certification services it is providing, has provided, or intends to provide.

20. A registered independent testing laboratory shall timely provide the Board with such other information as the Board or Commission may request or require.

21. The Board may, as appropriate, periodically provide further guidance as to what is required of a registered independent testing laboratory through industry notices or other written communications.

22. A registered independent testing laboratory, its employees, management, and owners shall remain independent of any manufacturer, distributor or operator as set forth under subsections 6 and 7 of section 14.360.

23. If a registered independent testing laboratory hires a person who was previously employed by, or performed any work for, a manufacturer, distributor or operator within one year prior to the person's date of employment with the independent testing laboratory, the registered independent testing laboratory shall not permit that person to inspect or certify any game, gaming device, associated equipment, cashless wagering system, or interactive gaming system, or any component thereof or modification thereto, for use in Nevada, for which the person had any involvement with, whatsoever, while the person was employed by the manufacturer, distributor or operator for a period of one year from the person's date of employment with the independent testing laboratory.

(Adopted: 3/12; Effective: 5/01/12. Amended: 12/18; 4/22.)

14.395 Independent testing laboratories; manufacturer, distributor, and operator prohibited actions.

1. A manufacturer, distributor, or operator shall not:

(a) Attempt, directly or indirectly, to improperly influence a registered independent testing laboratory, or any of its employees, management, or owners, regarding a game, gaming device, associated equipment, cashless wagering system, or interactive gaming system, or any component thereof or modification thereto, that it, or another person or entity, has submitted for inspection or certification for use in Nevada.

(b) Engage in any transaction with a registered independent testing laboratory it is utilizing, has utilized, or intends to utilize to inspect or certify a game, gaming device, associated equipment, cashless wagering system, or interactive gaming system, or any component thereof or modification thereto, for use in Nevada, in which the registered independent testing laboratory is required to participate, consult, or otherwise be involved in the design, development, programming, or manufacture of such items. This restriction is not intended to limit a manufacturer, distributor, or operator from engaging such registered independent testing laboratory to provide consulting services, provided that such services do not directly or indirectly indicate, suggest, or imply how to design, develop, program or manufacture such items.

2. Violation of the above prohibitions shall constitute an unsuitable method of operation.
(Adopted: 3/12; Effective: 5/01/12; Amended: 4/22.)

14.400 Independent testing laboratories; inspection and certification results. Each registered independent testing laboratory shall provide the person seeking inspection and certification with the results of the testing and certification process that is to be submitted to the Board in such manner and using such forms as the Chair may prescribe. The results shall include, in addition to such other items or information as the Chair may require, the following:

1. A statement, signed under penalty of perjury, that the certification process was conducted in accordance with Board requirements and that the product being certified meets the requirements of the Nevada Gaming Control Act and the regulations adopted thereunder, and all technical standards, control standards, control procedures, policies, and industry notices implemented or issued by the Board to the best of the registered independent testing laboratory's knowledge and belief.
 2. The name of the registered independent testing laboratory that performed the testing;
 3. The registration number of the registered independent testing laboratory that performed the testing;
 4. The location or locations of the facility or facilities the registered independent testing laboratory used to perform the testing;
 5. The internal reference number for the registered independent testing laboratory;
 6. The start and end dates of the product testing performed;
 7. An attestation statement that the product source code that was reviewed as part of the certification successfully produced materially identical software to the production software tested;
 8. The part and version number or numbers of the product submitted for certification;
 9. The SHA1 signature of all applicable files as they would appear post-installation, or other method as approved by the Chair;
 10. A description of the configuration of the product as tested;
 11. Deviations from standard testing approaches or protocols;
 12. Identification of the Nevada approved testing document(s) by name and version number;
 13. A description of any issues found during the testing process and the resolution thereof;
 14. Identification of any modification that was not identified by the manufacturer;
 15. A complete description of the testing that was conducted as part of the certification of the product that was not covered by a Board approved checklist; and
 16. Any additional information regarding the testing of the product that the registered independent testing laboratory considers appropriate for the Board to consider as part of the approval process.
- (Adopted: 3/12; Effective: 5/01/12. Amended: 2/26.)

14.410 Independent testing laboratories; termination of registration; revocation of registration; retention of jurisdiction.

1. A registered independent testing laboratory may request to terminate its registration by providing written notice to the Board of its intention at least three months before the expected date of termination. An independent testing laboratory's registration under this subsection is not deemed terminated until the Chair provides written notification that the voluntary termination has been granted.
2. The Chair may revoke the registration of a registered independent testing laboratory should the Chair determine that it no longer meets the qualifications necessary to be registered or has failed to comply with any of the requirements of this regulation. Such revocation is at the sole and absolute discretion of the Chair. The Chair shall provide written notification within 30 days of the designated revocation date unless circumstances are such that the interests of public health, safety, morals, good order and general welfare warrant an earlier revocation.
3. Any independent testing laboratory aggrieved by a decision of the Chair under subsections 1 or 2 may pursue a review of that decision pursuant to sections 4.185, 4.190, and 4.195 of these regulations.
4. The Board and Commission shall retain jurisdiction over the independent testing laboratory in any and all matters relating to a game, gaming device, associated equipment, cashless wagering system, inter-casino linked system, mobile gaming system or interactive gaming system, or any component thereof or modification thereto, that the independent testing laboratory certified for use in Nevada while it was registered with the Board.

(Adopted: 3/12; Effective: 5/01/12. Amended: 12/18.)

14.415 Independent testing laboratories; unsuitable method of operation. Failure of a registered independent testing laboratory to comply with all of the requirements of this regulation shall constitute an unsuitable method of operation and shall be grounds for disciplinary action by the Board and the Commission.

(Adopted: 3/12; Effective: 5/01/12. Amended: 12/18.)

14.420 Independent testing laboratories; determination of suitability.

1. Upon the recommendation of the Board, the Commission may require the following persons or entities to file an application for a finding of suitability:

- (a) A registered independent testing laboratory;
- (b) Any employee of a registered independent testing laboratory; or
- (c) Any officer, director, partner, principal, manager, member, trustee or direct or beneficial owner of a registered independent testing laboratory or any person, entity or intermediary entity that owns or has significant involvement with the activities of a registered independent testing laboratory.

2. The Commission shall give written notice to the applicable person or entity of its decision to require the filing of an application for finding of suitability. Unless otherwise stated by the Commission in its written notice, a person or entity that has been ordered to file an application for a finding of suitability under this subsection may continue to function in their respective capacity, unless and until the Commission finds the person or entity to be unsuitable.

3. If the Commission finds a registered independent testing laboratory to be unsuitable:

- (a) All registrations of the independent testing laboratory will be deemed immediately revoked;
- (b) All licensed manufacturers, manufacturers of interactive gaming systems, distributors and operators shall, upon written notification, immediately terminate any existing relationships, direct or indirect, with such independent testing laboratory;
- (c) No further games, gaming devices, associated equipment, cashless wagering systems, or interactive gaming systems, or any component thereof or modification thereto, shall be inspected or certified by the independent testing laboratory for use in Nevada.
- (d) The approval of any game, gaming device, associated equipment, cashless wagering system, or interactive gaming system, or any component thereof or modification thereto, inspected and certified by the independent testing laboratory for use in Nevada shall be subject to revocation if it is determined that the reasons for the finding of suitability applies thereto.

4. If the Commission finds an employee of the registered independent testing laboratory to be unsuitable:

(a) The registered independent testing laboratory must remove the person from the person's position immediately, and must not reassign the person to any other position that involves the inspection or certification of any game, gaming device, associated equipment, cashless wagering systems, or interactive gaming systems, or any component thereof or modification thereto, for use in Nevada;

(b) Failure of a registered independent testing laboratory to comply with this subsection shall constitute an unsuitable method of operation and shall be grounds for disciplinary action by the Board and the Commission.

5. If the Commission finds an officer, director, partner, principal, manager, member, trustee or director or beneficial owner of a registered independent testing laboratory, or any person, entity or intermediary entity that owns or has significant involvement with the activities of a registered independent testing laboratory to be unsuitable:

(a) The person or entity must divest itself of any ownership interest it has in the registered independent testing laboratory; and

(b) The registered independent testing laboratory, or other applicable person or entity, must indefinitely suspend the person or entity found unsuitable from performing any duties or having any involvement with or supervision over its operations or activities.

➤ Failure of a registered independent testing laboratory, or other person or entity, to comply with this subsection shall constitute an unsuitable method of operation and shall be grounds for disciplinary action by the Board and the Commission.

6. Failure of a licensed manufacturer, licensed manufacturer of an interactive gaming system, distributor or operator to terminate any association with an independent testing laboratory after receiving notice of the determination of unsuitability shall constitute an unsuitable method of operation.

7. The Commission retains jurisdiction to determine the suitability of an independent testing laboratory, or of any other person or entity to which this section applies, regardless of whether the relevant independent testing laboratory remains registered with the Board.

8. A failure on the part of the registered independent testing laboratory, or of any other person or entity to which this section applies, to submit an application for a finding of suitability within 30 days of being directed to do so by the Commission shall constitute grounds for a finding of unsuitability. Such period may be extended by the Commission Chair, at the Commission Chair's sole and absolute discretion, upon written request by the independent testing laboratory.

(Adopted: 3/12; Effective: 5/01/12. Amended: 12/18; 4/22.)

End – Regulation 14